

SUPERIOR COURT OF JUSTICE – ONTARIO

RE: CINDY HENHAWK v. THE CITY OF BRANTFORD
BEFORE: MR. JUSTICE D.S.CRANE
COUNSEL: Mr. Charles Flaherty, and Ms. Sciara, counsel for the Plaintiff
Ms. Ann Spafford, counsel for the Defendant

ENDORSEMENT

Liability

[1] This is an action in negligence for damages for personal injury, loss and expense pursuant to the Occupiers' Liability Act, c. O.2, RSO 1990.

[2] The duty of care owed by the defendant to the plaintiff is essentially to take reasonable care to make the subject premises reasonably safe for the plaintiff.

[3] The parking garage was constructed in 1983. In 2001 the third level open air deck was repaired to provide a replacement of a waterproof membrane on the entire open air surface.

[4] The plaintiff alleges that the 1997 Ontario Building Code applying to the 2001 repair, requires that the defendant provide demarcation markings between the parking surface and the platform and walkway surface.

[5] In my view, the plaintiff's submission requires a finding that the area of the fall is a "landing". Although there is room for the differing views of the two experts called, I conclude

that the plaintiff has not established that the 1997 Code required the defendant to paint the subject curb.

[6] The defendant in the course of the 2001 repair, and subsequent to that repair, did apply yellow paint to a good many of the curbs in its three level parking garage.

[7] In my view, it would have been reasonable for the defendant having in mind the considerable pedestrian use of its parking garage for purposes of egress and ingress to have continued with the curb painting onto the third level.

[8] I find a breach of section 3 of the Occupiers Liability Act. There was a tripping hazard to the plaintiff which by reasonable care by the defendant would have made the subject area reasonably safe for the plaintiff. The uniform material (with the exception of a non-skid additive to the walking area), the uniform colour, together with a very minor rise of three inches created by the curb followed by an eight degree decline are circumstances which make it reasonable for the defendant to take care in making the premises reasonably safe by the application of a strip of yellow paint along the curb edge. The occasion of where and when the work was being done, with painting taking place in any event, created the occasion for the defendant to make a reasonable assessment of the safety requirements for pedestrians.

Contributory Negligence

[9] I find contributory negligence.

[10] Although there is no duty on this plaintiff to watch the place where her next footfall will occur, there is also no evidence as to any obstructions to the plaintiff's line of sight, such as motor vehicles or other obstacles. The weather was clear and sunny. I find on the evidence that the subject curb and platform area would have been in the plaintiff's vision for a considerable time as she approached it on foot. The plaintiff does not state in her evidence where she was looking. In any event, my examination of the numerous photographs in evidence command the conclusion that this curb of some fifteen to eighteen feet in length, demarcated at the east end by a concrete abutment and vehicle ramp with curb, and at the west end, by a wheelchair ramp, all backed by an elevator enclosure, was visible upon reasonable vigilance.

[11] I conclude the degrees of negligent differ. I attribute two-thirds to the defendant and one-third to the plaintiff.

Personal Injury

[12] The plaintiff has sustained four injuries. A laceration to her forehead which resolved within a short time. A fracture of her right wrist and abrasions to her right forearm, which substantially resolved within a relatively short time, a dislocated fracture of the malleolus and fibula which required open reduction, and the most significant of the injuries, a dislocation fracture of the first metatarsal into the joint with the first cuneiform.

[13] I accept the evidence of Dr. Dunlop that there are major foot problems given that the foot fracture is at the dome of the foot, which takes the full force of the body. The subject fracture has resulted in arthritic changes. There are permanent physical limitations including jumping,

running, standing over time, walking on rough ground. A fusion is quite likely, which would in turn stress other joints of the foot dome creating a progression of arthritic problems in the future. The plaintiff has pain, is limited in her quality of life and given her age of 42 years at the time of the accident will have these problems, likely progressively, for the rest of her life.

[14] I note that the fusion of the subject fracture site will alleviate the pain in that area, but may well activate pain elsewhere in the foot. The plaintiff has had several surgical procedures and has suffered through rehabilitation.

[15] The plaintiff notwithstanding this fall has had a number of physical difficulties, including arthritic changes, flat feet and plantar faciatis which impact her quality of life going forward.

[16] On the plaintiff's ankle fracture, the evidence of Dr. Dunlop is that the plaintiff has a permanent loss of a range of motion of 15-20 percent inflexion, 10-15 percent of inversion and approximately 50% of eversion (outward). Given her foot injury however, these limitations of range of motion are not likely to have a great impact upon the plaintiff's quality of life.

[17] The fracture of the plaintiff's wrist has resulted also in a loss of range of motion, measured by Dr. Dunlop as somewhat less than 10% of flexion and about 5% of dorsa-flexion, for an overall 15% of right wrist motion being lost. Dr. Dunlop was of the view that the plaintiff would not notice this limitation and indeed the plaintiff in her evidence did not speak of it.

[18] Considering all of the evidence, I assess her non-pecuniary general damages for pain and suffering and the loss of the amenities of life in the sum of \$60,000.

Loss of Competitive Advantage

[19] I accept that the plaintiff is working as she chooses at this time without interference of her injuries and probably will continue in the future with her pottery and fire hall dispatching employments.

[20] I do accept that the plaintiff might well have sought to supplement her income in the future by returning to her previous part-time employment at the Oshwegan Convenience Store and of clerking at a retail store, none of which is now available to her, given the prognosis on her right foot.

[21] I find that the inability to take on these part-time employments to supplement income, particularly from the vicissitudes of being a potter, is a loss of some value to the plaintiff. I assess her general damages under this heading at \$10,000.

Special Damages

[22] The out of pocket claims of the plaintiff have not been seriously contested in this action, I allow the claims as presented as follows:

Parking for Medical Treatments	124.00
Payment for Aircast	125.00

Loss of Income from date of fall to April 1st, 2001

(\$8.00 per hour, 35 hours per week, 20 weeks and 3 days) 5,768.00

Subrogated Claim, OHIP 6,816.78

TOTAL \$ 12,833.78

[23] The plaintiff will have pre-judgment interest in accordance with the Courts of Justice Act.

[24] I reserve the issue of costs and invite counsel to make written submissions to me within 30 days hereof. Each counsel is to serve their material on the other within 20 days hereof and each counsel thereafter is given the opportunity to deliver a reply, all to be completed as stated within 30 days hereof.

CRANE J.

DATE: November 8, 2005

COURT FILE NO.: 02-6448

DATE: 20051108

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